

Kanika Mahajan vs Vivek Jandial on 27 October, 2022

Author: Tashi Rabstan

Bench: Tashi Rabstan

Sr. No.30

HIGH COURT OF JAMMU & KASHMIR AND LADAKH
AT JAMMU

TrP(C) No. 19/2020
CM No. 6399/2020

Kanika Mahajan

....Petitioner(s)/Appellant(s)

Through :- Mr. V. Bhushan Gupta, Advocate

V/s

Vivek Jandial

....Respondent(s)

Through :- None

Coram: HON'BLE MR. JUSTICE TASHI RABSTAN, JUDGE

ORDER

27.10.2022

1. The instant application has been filed by the petitioner seeking transfer of the Divorce Petition titled "Vivek Jandial vs. Kanika Mahajan" under Section 13 of Hindu Marriage Act, 1955 pending before the Court of learned Additional District Judge (Matrimonial Cases) Jammu, to the Court of learned Principal District Judge, Kathua.

2. It is submitted that a petition under Section 125 of Cr.P.C. and a complaint under Section 12/23 of Domestic Violence Act having been filed by the petitioner herein are also pending disposal before the Court of learned Chief Judicial Magistrate, Kathua, in which the respondent and others have appeared and are contesting the same. It is further submitted that the respondent herein has filed the divorce petition under Section 13 of Hindu Marriage Act, 1955 at Jammu against the petitioner in the court of learned Additional District Judge (Matrimonial Cases), Jammu to create an occasion of inflicting torture and harassment to the petitioner and her minor children.

3. Learned counsel for the petitioner submits that since the respondent herein is already appearing in two proceedings at Kathua, therefore he may not face any difficulty in case the petition under Section 13 of Hindu Marriage Act is transferred to Kathua.

4. Despite service neither objections have been filed nor has anyone caused appearance on behalf of respondent.

5. In view of the above, this application is allowed. The petition, i.e., Matrimonial Case (Civil) No. 357 of 2020 (CNR No. JKJM020032342020) under Section 13 of Hindu Marriage Act, 1955 titled "Vivek Jandial vs. Kanika Mahajan" pending before the court of learned Additional District Judge (Matrimonial Cases) Jammu is transferred to the court of learned Principal District Judge, Kathua. The learned Additional District Judge (Matrimonial Cases) Jammu shall transmit the entire paper book of the petition to the learned Principal District Judge, Kathua, who upon the receipt of the same shall issue notice to the parties and proceed further in the matter in accordance with law.

6. Disposed of as above.

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Jammu :
27.10.2022
Pawan Angotra

Whether the order is speaking : Yes/
Whether the order is reportable : Ye